

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tomiche Martinez	Team: Squad #12	CCRB Case #: 202408002	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/09/2024 11:50 PM	Location of Incident: 33rd Street 6-line subway station in Manhattan	18 Mo. SOL 2/9/2026	Precinct: 14		
Date/Time CV Reported Sat, 08/10/2024 2:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 08/10/2024 2:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An Officer			
2. PO Saleem Hosein	23325	969799	TD 4
3. PO Guo Chu	16954	959550	TD 4

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein improperly used his body-worn camera.	A . Substantiated
B . PO Guo Chu	Abuse: Police Officer Guo Chu improperly used his body-worn camera.	B . Substantiated
C . PO Saleem Hosein	Discourtesy: Police Officer Saleem Hosein acted discourteously toward § 87(2)(b)	C . Unable to Determine
D . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein threatened to arrest § 87(2)(b)	D . Unable to Determine
E . PO Guo Chu	Abuse: Police Officer Guo Chu threatened to arrest § 87(2)(b)	E . Unable to Determine
F . PO Guo Chu	Force: Police Officer Guo Chu used physical force against § 87(2)(b)	F . Unable to Determine
G . PO Saleem Hosein	Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)	G . Unable to Determine
H . PO Saleem Hosein	Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)	H . Unfounded
I . PO Saleem Hosein	Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)	I . Unfounded
J . PO Guo Chu	Force: Police Officer Guo Chu used physical force against § 87(2)(b)	J . Unfounded
K . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein ejected § 87(2)(b) from the transit system.	K . Within NYPD Guidelines
L . PO Guo Chu	Abuse: Police Officer Guo Chu ejected § 87(2)(b) from the transit system.	L . Within NYPD Guidelines
M . PO Guo Chu	Force: Police Officer Guo Chu used a chokehold against § 87(2)(b)	M . Unfounded
N . PO Guo Chu	Force: Police Officer Guo Chu used physical force against § 87(2)(b)	N . Unfounded
O . PO Guo Chu	Force: Police Officer Guo Chu used physical force against § 87(2)(b)	O . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
P . PO Guo Chu	Force: Police Officer Guo Chu hit § 87(2)(b) against a wall.	P . Within NYPD Guidelines
Q . PO Saleem Hosein	Force: Police Officer Saleem Hosein hit § 87(2)(b) against a wall.	Q . Unfounded
R . An Officer	Force: An Officer used a chokehold against § 87(2)(b)	R . Unfounded
S . PO Saleem Hosein	Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)	S . Unfounded
T . PO Saleem Hosein	Discourtesy: Police Officer Saleem Hosein spoke discourteously to § 87(2)(b)	T . Unfounded
U . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein threatened § 87(2)(b) with the use of force.	U . Within NYPD Guidelines
V . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein refused to provide his name to § 87(2)(b)	V . Unable to Determine
W . PO Guo Chu	Abuse: Police Officer Guo Chu refused to provide his name to § 87(2)(b)	W . Unable to Determine
X . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein refused to provide his shield number to § 87(2)(b)	X . Unable to Determine
Y . PO Guo Chu	Abuse: Police Officer Guo Chu refused to provide his shield number to § 87(2)(b)	Y . Unable to Determine
Z . PO Saleem Hosein	Abuse: Police Officer Saleem Hosein obstructed his shield number.	Z . Unable to Determine
AA. PO Saleem Hosein	Abuse: Police Officer Saleem Hosein failed to provide § 87(2)(b) with a business card.	AA. Substantiated
AB. PO Guo Chu	Abuse: Police Officer Guo Chu failed to provide § 87(2)(b) with a business card.	AB. Substantiated
AC. PO Guo Chu	Discourtesy: Police Officer Guo Chu gestured discourteously toward § 87(2)(b)	AC. Unable to Determine

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's Call Processing System on August 10, 2024.

On August 9, 2024, at 11:50 PM, at the 33rd Street 6-line subway station in Manhattan, PO Guo Chu and PO Saleem Hosein, of Transit District 4, activated their body-worn cameras (BWCs) late as they removed § 87(2)(b) from a subway car (**Allegations A and B: Abuse of Authority, Substantiated**). PO Hosein allegedly kicked § 87(2)(b) bicycle (**Allegation C: Discourtesy, Unable to Determine**). PO Chu and PO Hosein allegedly threatened to arrest § 87(2)(b) (**Allegations D and E: Abuse of Authority, Unable to Determine**). PO Chu pulled § 87(2)(b) off of the train and PO Hosein pushed § 87(2)(b) off of the train (**Allegations F and G: Force, Unable to Determine**). PO Hosein allegedly pulled § 87(2)(b) from the train by the neck (**Allegation H: Force, Unfounded**). PO Hosein and PO Chu allegedly punched § 87(2)(b) (**Allegations I and J: Force, Unfounded**). PO Chu and PO Hosein then decided to eject § 87(2)(b) from the transit system (**Allegations K and L: Abuse of Authority, Within NYPD Guidelines**). PO Chu allegedly used a chokehold against § 87(2)(b) (**Allegation M: Force, Unfounded**). PO Chu allegedly struck § 87(2)(b) face with his palm (**Allegations N: Force, Unfounded**). PO Chu pushed § 87(2)(b) by the face (**Allegation O: Within NYPD Guidelines**). PO Chu held § 87(2)(b) against a wall (**Allegation P: Force, Within NYPD Guidelines**). PO Hosein allegedly held § 87(2)(b) against a wall (**Allegation Q: Force, Unfounded**). Either PO Chu and PO Hosein allegedly choked § 87(2)(b) against the wall (**Allegation R: Force, Unfounded**). PO Hosein allegedly shoved § 87(2)(b) (**Allegation S: Force, Unfounded**) and allegedly said to § 87(2)(b) "Do you want me to fuck you up right now? I'll fuck you up right now" (**Allegation T: Discourtesy, Unfounded**). PO Hosein said to § 87(2)(b) "Get out. Otherwise, you're going out with force" (**Allegation U: Abuse of Authority, Within NYPD Guidelines**). PO Chu and PO Hosein allegedly refused to provide their names and shield numbers to § 87(2)(b) and PO Hosein allegedly covered his shield number (**Allegations V, W, X, Y, and Z: Abuse of Authority, Unable to Determine**). PO Chu and PO failed to provide § 87(2)(b) with business cards (**Allegations AA and AB: Abuse of Authority, Substantiated**). PO Chu allegedly gave § 87(2)(b) the middle finger (**Allegation AC: Discourtesy, Unable to Determine**). § 87(2)(b) was not summonsed or arrested as a result of this incident.

The investigation obtained BWC videos recorded by PO Chu and PO Hosein (Board Review 01), summarized in IA #46 (Board Review 02). The investigation also obtained MTA surveillance footage capturing the incident (Board Review 03), summarized in IA #50 (Board Review 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Saleem Hosein improperly used his body-worn camera.

Allegation (B) Abuse of Authority: Police Officer Guo Chu improperly used his body-worn camera.

Although not alleged by § 87(2)(b) BWC videos show that both PO Hosein and PO Chu activated their BWCs late.

In PO Hosein's BWC video (Board Review 05), there is no audio for the first 60 seconds. At the beginning of the video, at 23:50:53, PO Hosein faces PO Chu. § 87(2)(b) who wears a durag and holds onto a bicycle, sits to PO Hosein's right. A man and woman gesture toward § 87(2)(b) and the officers appear to speak. At 20 seconds, the train comes to a stop. PO Chu puts on a pair of latex

gloves, approaches § 87(2)(b) grabs the handlebars of the bicycle, and pulls the bicycle away from § 87(2)(b) holds onto the bicycle. PO Chu and PO Hosein push and pull § 87(2)(b) and his bicycle from the subway car. At 51 seconds, § 87(2)(b) attempts to reenter the subway car, and PO Chu pushes him off again. As PO Chu does so, PO Hosein activates his BWC at 1 minute 0 seconds or 23:51:54, as indicated by the audio and haptic feedback.

In PO Chu's BWC video (Board Review 06), which begins at 23:53:32 (more than two minutes after the beginning of PO Hosein's BWC video), audio begins at 5 seconds. PO Chu and PO Hosein escort § 87(2)(b) towards the station exit. PO Chu activates his BWC at 5 seconds, or 23:52:32, as indicated by the audio and haptic feedback.

PO Chu provided a statement to the CCRB on November 7, 2024 (Board Review 07). PO Chu did not activate his BWC when he decided to eject § 87(2)(b) from the train because he was busy dealing with § 87(2)(b) BWC activation slipped PO Chu's mind and he did not have the opportunity to activate. PO Chu was shown PO Hosein's BWC starting at 0 minutes 0 seconds, which depicts PO Chu putting on gloves before taking § 87(2)(b) bicycle from him. PO Chu put on gloves before taking § 87(2)(b) bicycle because he did not want to get a cut on his hands. PO Chu then stated that he could have activated his BWC instantaneously and that he did have the opportunity to activate his BWC, but that he did not activate his BWC prior to removing § 87(2)(b) from the train.

PO Hosein provided a statement to the CCRB on November 18, 2024 (Board Review 08). PO Hosein decided to remove § 87(2)(b) while the train was still in motion. PO Hosein activated once PO Chu grabbed § 87(2)(b) PO Hosein should have activated his BWC when he decided to eject § 87(2)(b) while the train was still in motion. However, at the time, PO Hosein did not know what § 87(2)(b) was going to do. PO Hosein did not know that § 87(2)(b) would refuse to exit the train of his own power. PO Hosein did not activate his BWC then because he did not know that this situation would escalate.

NYPD Patrol Guide Procedure 212-123 (Board Review 10) requires uniformed members of service to activate their BWCs prior to engaging in any police action. Police action is any police service, including law enforcement or investigative activity, conducted in furtherance of official duties.

The NYPD's BWC Impact and Use Policy (Board Review 09) states that BWC audio begins recording when an officer activates their BWC, and that the period of video preceding audio is a buffer period, before the officer activates their BWC.

It is undisputed that PO Chu and PO Hosein activated their BWCs late. § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Substantiated**.

Allegation (C) Discourtesy: Police Officer Saleem Hosein acted discourteously toward

§ 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Saleem Hosein threatened to arrest

§ 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Guo Chu threatened to arrest § 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB on August 15, 2024 (Board Review 11). On August 9, 2024, he boarded a Bronx-bound 6 train at the 23rd Street station in Manhattan. He had his bicycle with him. He took a seat next to the doors at the middle of the car. PO Hosein and PO Chu were in the same car, standing on either side of the doors. When the train departed, § 87(2)(b) angled the bicycle so that the front wheel was in front of his legs and the rear wheel was near the door, to avoid blocking the aisle. PO Hosein was standing to the left of where § 87(2)(b) maneuvered his bicycle. § 87(2)(b) said to PO Hosein, “Watch out.” He did not say this aggressively. The bicycle bumped into PO Hosein’s shoe. PO Chu asked what § 87(2)(b) was doing. § 87(2)(b) said that he had asked the officers to move and that he was trying to avoid blocking the aisle. PO Hosein instructed § 87(2)(b) to move his bicycle into the aisle. § 87(2)(b) refused and said that he would not move his bicycle. PO Hosein kicked the bicycle. § 87(2)(b) then tried to move the rear wheel near the door again. PO Hosein moved closer to § 87(2)(b) blocked the rear wheel. § 87(2)(b) refused to move the bicycle. PO Hosein continued to kick the bicycle. § 87(2)(b) told the officers that he regularly orients his bicycle like this on the subway. PO Hosein said that if § 87(2)(b) did not leave his bicycle in the middle of the aisle, they would remove him from the train. § 87(2)(b) replied that he only wanted PO Hosein to move over. PO Hosein continued to kick the bicycle. The train arrived at the 33rd Street station and the doors opened. PO Hosein and PO Chu said that they would hold the train at the station until § 87(2)(b) got off the train. PO Hosein and PO Chu also said that they would arrest § 87(2)(b).

As noted above, there is no BWC video capturing this portion of the incident.

PO Chu (Board Review 07) stated that § 87(2)(b) bumped passengers with his bicycle and that the passengers complained. PO Chu and PO Hosein told § 87(2)(b) not to bump other passengers with his bicycle and to be careful. § 87(2)(b) did not care and told the passengers to move. When § 87(2)(b) sat down and was positioning his bicycle, he hit PO Hosein with it. § 87(2)(b) told PO Hosein to move and to watch out. PO Chu and PO Hosein told § 87(2)(b) to be more respectful on public transportation. PO Chu and PO Hosein told § 87(2)(b) that he would need to exit the train at the next station. § 87(2)(b) needed to leave the train at that point because he was behaving in a disorderly manner by being rude and disrespectful to other paying customers on the train, in violation of the MTA rules. § 87(2)(b) refused to exit at the next station. PO Chu did not tell § 87(2)(b) that he would arrest him.

PO Hosein (Board Review 08) also stated that § 87(2)(b) bumped passengers with his bicycle as he made his way through the train. When § 87(2)(b) sat down, he placed his bicycle against PO Hosein’s shin. § 87(2)(b) bike was now blocking the door. PO Hosein told § 87(2)(b) to move the bicycle away from the door, but § 87(2)(b) did not comply. PO Hosein may have kicked § 87(2)(b) bicycle. § 87(2)(b) started to get loud and disorderly, which alarmed the other passengers on the train. This was a violation of both the transit rules and penal law. PO Hosein told § 87(2)(b) to exit the train at the next station and take the next train. § 87(2)(b) would not have been ejected from the transit system at that time. § 87(2)(b) said he would not get off the train. PO Hosein did say that he would arrest § 87(2)(b).

The Mission, Vision, and Values of the NYPD, as articulated in the Patrol Guide (Board Review 12), state that officers must render services with courtesy and civility.

MTA rule 1050.7 prohibits disorderly conduct, which the MTA defines a patron conducting himself in any manner which may cause or tend to cause annoyance, alarm, or inconvenience to a reasonable person, or create a breach of the peace (Board Review 13).

NYPD Patrol Guide Procedure 209-01 (Board Review 24) states that officers may issue summonses

for violations of MTA rule 1050. NYPD Patrol Guide Procedure 209-39 (Board Review 25) addresses summonses for transit violations and states that officers should issue a summons for fare evasion and should not make an arrest unless the offender has an open warrant or criminal complaint, commits an independently arrestable offense, cannot be properly identified, is determined to be a transit recidivist, and/or the officer can articulate a legitimate law enforcement purpose for arrest.

§ 87(2)(b) alleged that PO Hosein repeatedly kicked his bicycle while the train was in motion. BWC video does not capture this portion of the incident. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unable to Determine**.

§ 87(2)(g) PO Hosein and PO Chu denied saying that they would arrest § 87(2)(b) and BWC video does not capture this portion of the incident. § 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Unable to Determine**.

Allegation (F) Force: Police Officer Guo Chu used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Guo Chu used physical force against § 87(2)(b)

§ 87(2)(b) (Board Review 11) stated that PO Chu tried to pull his bicycle onto the platform. § 87(2)(b) held onto his bicycle and asked what PO Chu was doing. PO Chu tried to pull the bicycle through the doors, but the wheels were caught in the doorway. PO Hosein grabbed § 87(2)(b) by the back of his neck and tried to pull him off of the train while PO Chu pulled on the bicycle. PO Hosein and PO Chu were now on the platform, continuing to pull § 87(2)(b) and his bicycle. PO Hosein and PO Chu punched § 87(2)(b) on the arms. Later, his forearm was swollen. He also later found cuts on his right leg, but could not say whether these resulted from his bicycle hitting his leg, the officers pulling him through the door, or the officers striking him. Finally, PO Hosein and PO Chu successfully pulled § 87(2)(b) off of the train and onto the platform.

At the beginning of PO Hosein's BWC video (Board Review 05), PO Hosein faces PO Chu, and § 87(2)(b) sits next to PO Hosein, holding onto his bicycle. The handlebars and front wheel are in front of § 87(2)(b). The rear wheel is angled toward PO Hosein. PO Chu looks at § 87(2)(b) and appears to be speaking. A man and a woman gesture toward § 87(2)(b) and the officers and appear to speak. At 20 seconds, the train slows to a stop. PO Chu puts on a pair of latex gloves, approaches

§ 87(2)(b) grabs the handlebar of the bicycle, and pulls it away from § 87(2)(b) who holds onto it. PO Chu steps backward onto the platform, pulling the bicycle from the train. PO Hosein stands in the doorway and grabs the bicycle with his right hand, helping PO Chu. § 87(2)(b) grabs the bicycle and pulls it back toward him, into the train, and steps in front of PO Hosein. At 32 seconds, PO Hosein pushes § 87(2)(b) from behind, toward the platform. At 40 seconds, PO Hosein and PO Chu remove § 87(2)(b) and his bicycle fully from the train. PO Chu and PO Hosein remain on the train. At no point does PO Hosein grab or pull § 87(2)(b) by the back of the neck. At point do PO Hosein or PO Chu punch § 87(2)(b).

PO Chu (Board Review 07) stated that he decided to remove § 87(2)(b) from the train because § 87(2)(b) was being disrespectful to other customers by hitting them with his bicycle and telling them to move. PO Chu told § 87(2)(b) he would be removed for behaving in a disorderly manner, and gave § 87(2)(b) the opportunity to leave of his own power. However, § 87(2)(b) explicitly refused to leave the train. PO Chu then grabbed § 87(2)(b) bicycle and arm and physically removed him from the train car.

PO Hosein (Board Review 08) stated that § 87(2)(b) grew loud, alarming the other passengers, and became disorderly in violation of both the NYC rules and the penal law. PO Hosein told § 87(2)(b) to get off at the next station and take the next train. However, PO Hosein was not fully ejecting § 87(2)(b) from the transit system at that point. § 87(2)(b) refused to exit the train. To remove § 87(2)(b) from the train, PO Hosein placed his hand on § 87(2)(b) backpack, but he denied pushing § 87(2)(b). PO Hosein grabbed the bicycle wheels to move the bicycle out of the train car. PO Hosein did not push § 87(2)(b) as he was holding the wheel.

As noted, MTA rule 1050.7 prohibits disorderly conduct, which the MTA defines a patron conducting themselves in any manner which may cause or tend to cause annoyance, alarm, or inconvenience to a reasonable person, or create a breach of the peace (Board Review 13).

Patrol Guide Procedure 212-20 (Board Review 14) notes that any person who violates any portion of MTA Code 1050 is subject to ejection from New York City Transit facilities and that officers may use limited force to effect the ejection if the subject refuses to leave voluntarily.

NYPD Patrol Guide Procedure 221-01 Force Guidelines (Board Review 15) states that any use of force must be reasonable under the circumstances.

BWC video shows that PO Chu pulled § 87(2)(b) and his bicycle off the train onto the platform and that PO Hosein pushed § 87(2)(b) and his bicycle from behind. § 87(2)(g)

§ 87(2)(b) BWC video does not capture § 87(2)(b) behavior prior to the officers' use of force, § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations F and G** be closed as **Unable to Determine**.

BWC video shows that PO Hosein did not grab or pull § 87(2)(b) by the back of his neck, and that neither PO Hosein nor PO Chu punched § 87(2)(b). It is therefore recommended that **Allegations H, I, and J** be closed as **Unfounded**.

Allegation (K) Abuse of Authority: Police Officer Saleem Hosein ejected § 87(2)(b) from the transit system.

Allegation (L) Abuse of Authority: Police Officer Guo Chu ejected § 87(2)(b) from the transit system.

Allegation (M) Force: Police Officer Guo Chu used a chokehold against § 87(2)(b)

Allegation (N) Force: Police Officer Guo Chu used physical force against § 87(2)(b)

Allegation (O) Force: Police Officer Guo Chu used physical force against § 87(2)(b)

Allegation (P) Force: Police Officer Guo Chu hit § 87(2)(b) against a wall.

Allegation (Q) Force: Police Officer Saleem Hosein hit § 87(2)(b) against a wall.

Allegation (R) Force: an officer used a chokehold against § 87(2)(b)

Allegation (S) Force: Police Officer Saleem Hosein used physical force against § 87(2)(b)

Allegation (T) Discourtesy: Police Officer Saleem Hosein spoke discourteously to § 87(2)(b)

Allegation (U) Abuse of Authority: Police Officer Saleem Hosein threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (Board Review 11) stated that after PO Chu and Hosein removed him from the train, he tried to board the train again. PO Chu choked § 87(2)(b) by squeezing § 87(2)(b) neck with one hand. § 87(2)(b) lowered his head, and PO Chu lost his grip on § 87(2)(b) neck. PO Chu also struck § 87(2)(b) in the face with his palm. Next, PO Hosein and PO Chu pinned § 87(2)(b) against a wall. § 87(2)(b) was choked again when he was pressed up against the wall, but he could not recall by whom. When a passerby questioned the officers' actions, they released § 87(2)(b). The officers then told § 87(2)(b) to exit the station. § 87(2)(b) said that he had paid the fare and did not want to leave, but PO Hosein shoved § 87(2)(b) in the back toward the exit. § 87(2)(b) told PO Hosein to leave him alone. PO Hosein said, "Do you want me to fuck you up right now? I'll fuck you up right now." PO Hosein escorted § 87(2)(b) to the emergency exit door, and § 87(2)(b) exited the interior of the station.

PO Hosein prepared a Transit System Ejection Report (Board Review 16), which lists the Reason For Ejection as "Other, Specify: Disorderly."

In PO Hosein's BWC video (Board Review 05), at 0 minutes 45 seconds, PO Chu and PO Hosein remove § 87(2)(b) from the train but remain on the train and do not follow § 87(2)(b) onto the platform. § 87(2)(b) walks to another door to the same car and, at 51 seconds, enters the car again. PO Chu intercepts § 87(2)(b) at the doorway. § 87(2)(b) holds his bicycle at chest height while trying to reboard the train. PO Chu grabs the seat post and pushes § 87(2)(b) onto the platform. § 87(2)(b) struggles against PO Chu and continues to hold his bicycle at chest height, between him and PO Chu. At 0 minutes 55 seconds, PO Chu pushes § 87(2)(b) face with his left hand. PO Chu does not strike § 87(2)(b) in the face. At no point does PO Chu choke § 87(2)(b) or squeeze § 87(2)(b) neck. At 59 seconds, PO Chu grips the fabric of the shoulders of § 87(2)(b) sweatshirt with both hands. § 87(2)(b) is still holding the bicycle. Audio begins at 1 minute 0 seconds. At 1 minute 0 seconds, as § 87(2)(b) holds his bicycle up in front of his chest, toward PO Chu, PO Chu pushes § 87(2)(b) onto the platform and then him backward toward a wall. PO Chu's hand is on the back of § 87(2)(b) head. At 1 minute 6 seconds, PO Chu palms the right side of § 87(2)(b) face with his left hand. § 87(2)(b) is up against the wall. PO Chu, pushing against § 87(2)(b) head, pushes § 87(2)(b) left side against a painted steel I-bar, as § 87(2)(b) is hunched forward. At 1 minute 11 seconds, PO Chu's left hand is near the back of § 87(2)(b) neck as he pushes § 87(2)(b) toward the I-bar. At 1 minute 13 seconds, PO Chu pushes § 87(2)(b) away from him by the back of the neck. PO Hosein then orders § 87(2)(b) from the station. At no point does PO Hosein hit § 87(2)(b) against the wall. At no point does PO Chu or PO Hosein choke § 87(2)(b) against the wall. At 1 minute 31 seconds, § 87(2)(b) begins to walk toward the exit. PO Hosein continues to instruct § 87(2)(b) to exit the station. PO Hosein follows him. PO Hosein says, "I asked you nicely

the first time, right?” PO Hosein opens the emergency exit gate. PO Hosein says, “Get out. Get out. Get out. Otherwise, you’re going out with force, I’m going to let you know now.” § 87(2)(b) exits the paid fare zone via the exit gate. At no point does PO Hosein shove § 87(2)(b) in the back toward the exit. At no point does PO Hosein threatened to “fuck § 87(2)(b) up,” or otherwise use profanity.

As noted above, PO Chu (Board Review 07) stated that he ejected § 87(2)(b) from the train due to disorderly behavior. However, § 87(2)(b) pushed his bicycle against PO Chu and PO Hosein. As such, PO Chu made contact with § 87(2)(b) face because that was the only way to remove § 87(2)(b) from the train. § 87(2)(b) bicycle was in the way. PO Chu did not know if he grabbed § 87(2)(b) by the neck, but denied ever squeezing § 87(2)(b) neck. PO Chu may have grabbed the back of § 87(2)(b) sweatshirt. PO Chu grabbed § 87(2)(b) by the back of his durag and then, once on the platform, again on the side of § 87(2)(b) face. PO Chu made contact with § 87(2)(b) face again because it was the only accessible area of § 87(2)(b) body, as § 87(2)(b) was pushing his bicycle against PO Chu. PO Chu also made contact with § 87(2)(b) neck. PO Chu maintained that he did not intentionally push § 87(2)(b) against the wall, and that § 87(2)(b) fell against the wall of his own power. PO Chu pushed § 87(2)(b) by the face and as a result § 87(2)(b) made contact with the wall.

PO Hosein (Board Review 08) stated that he and PO Chu took hold of § 87(2)(b) and removed him from the train in order to eject him from the station. Once on the platform, PO Hosein said to § 87(2)(b) “Get out. Otherwise, you’re going out with force.” § 87(2)(b) had the opportunity to leave of his own power, or the officers could physically guide him out with minimal force, by holding him from either side and walking him out of the station.

As noted, MTA rule 1050.7 prohibits disorderly conduct, which the MTA defines a patron conducting themselves in any manner which may cause or tend to cause annoyance, alarm, or inconvenience to a reasonable person, or create a breach of the peace (Board Review 13).

Per NYPD Patrol Guide Procedure 212-20 (Ejection from New York City Transit Property) (Board Review 14), any person who violates any portion of MTA Code 1050 is subject to ejection from New York City Transit facilities, and officers may use limited force to effect the ejection if the subject refuses to leave voluntarily. When necessary to eject a passenger officers should advise passenger of ejection and reason and permit passenger, who voluntarily leaves the property or shows a willingness to do so, to leave without interference. Officers should use no more force than is necessary to effect the ejection if the passenger refuses to leave. Generally, grasping the upper arm and forearm to escort the person off the system is considered using reasonable force necessary to effect the ejection.

NYPD Patrol Guide Procedure 221-01 (Board Review 15) states that that any use force must be reasonable under the circumstances.

It is undisputed that PO Hosein and PO Chu ejected § 87(2)(b) from the transit system. BWC video clearly shows that when § 87(2)(b) resisted the officers’ initial efforts to remove him from the train, and then tried to reboard the train. § 87(2)(g)

It is therefore recommended that **Allegations K and L** be closed as **Within NYPD Guidelines**.

BWC video shows that PO Chu did not choke § 87(2)(b) or squeeze § 87(2)(b) neck when § 87(2)(b)

§ 87(2)(b) tried to reboard the train. It is therefore recommended that **Allegation M** be closed as **Unfounded**.

BWC video also shows that PO Chu did not strike § 87(2)(b) in the face as alleged. It is therefore recommended that **Allegation N** be closed as **Unfounded**.

However, BWC video shows that PO Chu did push § 87(2)(b) by his face, off the train and against the platform wall. § 87(2)(g)

§ 87(2)(b) BWC video shows that § 87(2)(b) held his bicycle at chest height. PO Chu first grabbed the seat post and pushed § 87(2)(b) out of the train and onto the platform. § 87(2)(b) struggled against PO Chu and continued to hold his bicycle at chest height, between him and PO Chu, which both limited PO Chu's access to his body and posed a danger to PO Chu. It was only then that PO Chu then pushed § 87(2)(b) by the face, out of the train car and then toward the platform wall. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation O and P** be closed as **Within NYPD Guidelines**.

BWC video shows that PO Hosein did not pin § 87(2)(b) up against a wall § 87(2)(g) and that neither PO Chu nor PO Hosein choked § 87(2)(b) against a wall § 87(2)(g). It is therefore recommended that **Allegations Q and R** be closed as **Unfounded**.

BWC video shows that PO Hosein did not shove § 87(2)(b) in the back or use profanity against him when he escorted § 87(2)(b) out of the paid fare zone § 87(2)(g). It is therefore recommended that **Allegation S and T** be closed as **Unfounded**.

It is undisputed that PO Hosein warned that he could use force to remove § 87(2)(b) from the paid zone of the station. § 87(2)(g) it is therefore recommended that **Allegation U** be closed as **Within NYPD Guidelines**.

Allegation (V) Abuse of Authority: Police Officer Saleem Hosein refused to provide his name to § 87(2)(b)

Allegation (W) Abuse of Authority: Police Officer Guo Chu refused to provide his name to § 87(2)(b)

Allegation (X) Abuse of Authority: Police Officer Saleem Hosein refused to provide his shield number to § 87(2)(b)

Allegation (Y) Abuse of Authority: Police Officer Guo Chu refused to provide his shield number to § 87(2)(b)

Allegation (Z) Abuse of Authority: Police Officer Saleem Hosein obstructed his shield number.

§ 87(2)(b) (Board Review 11) stated that after he exited the paid zone, the officers did not take him up to street level. They ejected him from the paid zone and waited for the next train. From the other side of the turnstiles, § 87(2)(b) asked PO Hosein and PO Chu for their identifying information. The officers did not respond. § 87(2)(b) tried to take a photo of PO Hosein's name plate and shield number, but PO Hosein covered them.

In PO Hosein's BWC video (Board Review 05), at 4 minutes 07 seconds, PO Hosein follows § 87(2)(b) up the stairs to the street level. PO Hosein deactivates his BWC at 4 minutes 13 seconds, or 23:55:07, while standing on the stairs. This is PO Hosein's only BWC video. It does not capture

§ 87(2)(b) requesting PO Hosein or PO Chu's names or shield numbers. It does not capture any further interaction with § 87(2)(b)

In PO Chu's BWC video (Board Review 06), at 2 minutes 25 seconds, PO Chu begins to follow PO Hosein up the stairs. PO Chu deactivates his BWC at 2 minutes 41 seconds, or 23:55:13, on the landing of the stairs. This is PO Chu's only BWC video. It does not capture § 87(2)(b) requesting PO Hosein or PO Chu's names or shield numbers, or any further interaction with § 87(2)(b)

MTA surveillance video capturing a portion of this incident does not include audio, but indicates that the officers may have had further interaction with § 87(2)(b) (Board Review 03). At 0 minutes 3 seconds, or 23:57:25, PO Hosein and PO Chu enter the frame after having removed § 87(2)(b) from the station. PO Hosein and PO Chu stand on the platform. At 3 minutes 58 seconds, PO Hosein and PO Chu glance towards the turnstiles. PO Hosein turns toward the turnstiles and appears to speak. At 4 minutes 16 seconds, PO Hosein makes several "cut it out" gestures and shines his flashlight toward the turnstiles. PO Hosein continues to look toward the turnstiles. At 4 minutes 38 seconds, PO Hosein stops looking at the turnstiles. At 4 minutes 48 seconds, PO Hosein and PO Chu board the train. PO Chu glances toward the turnstiles. At 5 minutes 8 seconds, the train departs.

PO Chu (Board Review 07) stated that § 87(2)(b) returned to the station 30 seconds after he was ejected. § 87(2)(b) appeared to be recording the officers from the other side of the turnstiles and did not say anything to PO Chu. § 87(2)(b) did not request his name or shield number.

PO Hosein (Board Review 08) also stated that § 87(2)(b) returned to the station, but that he did not interact with § 87(2)(b) again. § 87(2)(b) approached the gate near the turnstile. PO Hosein signaled to the booth clerk not to let § 87(2)(b) into the station by making a "cut it out" gesture, and shining his flashlight. § 87(2)(b) did not speak to PO Hosein. § 87(2)(b) did not request PO Hosein's name or shield number. PO Hosein's name and shield number were visible on his vest.

NYPD Administrative Guide Procedure 304-11 (Compliance with the New York City Right to Know Act) (Board Review 18) requires officers to courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests that they do so. This procedure also states that uniformed members of service are required to have their shield number visible at all times.

PO Hosein and PO Chu's BWC videos end before § 87(2)(b) reported requests for the officers' information. § 87(2)(g)

It is therefore recommended that Allegations V, W, X, Y and Z be closed as **Unable to Determine**.

Allegation (AA) Abuse of Authority: Police Officer Saleem Hosein failed to provide § 87(2)(b) with a business card.

Allegation (AB) Abuse of Authority: Police Officer Guo Chu failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) (Board Review 11) stated that neither PO Hosein nor PO Chu offered him a business card.

PO Chu (Board Review 07) stated that he did not provide § 87(2)(b) a business card because § 87(2)(b) did not request one. It was PO Chu's understanding that officers are only required to provide business cards upon request. PO Chu did not know if he was required to provide a business card to the subject of law enforcement activity who was not arrested or summonsed. It is PO Chu's understanding that officers are never required to proactively offer a business card.

PO Hosein (Board Review 08) stated that per the Patrol Guide, officers are required to provide a business card upon request, and § 87(2)(b) did not ask for a business card. Officers are also required to proactively offer business cards during a level two or three stop, but this was not a stop. Rather, this was a transit ejection. PO Hosein would not provide a business card for a transit ejection unless asked. It is PO Hosein's understanding that he is not required to offer a business card the subject of any law enforcement activity who is not arrested or summonsed.

NYC Administrative Code 14-174, a part of the "Right to Know Act" (Board Review 19), and NYPD Administrative Guide Procedure 304-11 ("Compliance with New York City Right To Know Act") (Board Review 18) state that officers are to offer a business card at the conclusion of law enforcement activities that do not result in an arrest or summons.

PO Chu and PO Hosein ejected § 87(2)(b) from the transit system, but did not arrest or summons

§ 87(2)(b) § 87(2)(g)
it is recommended that **Allegations AA and AB** be closed as **Substantiated**.

Allegation (AC) Discourtesy: Police Officer Guo Chu acted discourteously toward § 87(2)(b)

§ 87(2)(b) (Board Review 11) stated that PO Chu gave him the middle finger as PO Hosein and PO Chu boarded the next train to arrive at the station.

As noted, neither PO Hosein's BWC video (Board Review 06) nor PO Chu's BWC video (Board Review 06) captures any interaction with § 87(2)(b) after they escorted him up the stairs. Neither video shows PO Chu or PO Hosein boarding the train, or PO Chu giving § 87(2)(b) the middle finger.

In the MTA surveillance video (Board Review 03), at 4 minutes 42 seconds or 00:01:59, a train arrives at the station. PO Hosein and PO Chu prepare to board the train. At 4 minutes 47 seconds, PO Chu glances toward the turnstiles. At 4 minutes 54 seconds, PO Chu boards the train. PO Chu's actions once he boards the train are obscured by a vertical beam. The train departs shortly afterward. The video does not capture PO Chu giving § 87(2)(b) the middle finger.

PO Chu (Board Review 07) denied giving § 87(2)(b) the middle finger.

BWC videos and MTA surveillance video do not capture PO Chu making any such gesture, but do not show PO Chu while he was on the train just prior to departure from the station, and PO Chu denied that he gave § 87(2)(b) the middle finger. § 87(2)(g)

It is therefore recommended that **Allegation AC** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Chu has been a member of service for nine years and has been a subject in four other CCRB complaints and 16 allegations, none of which were substantiated. § 87(2)(g)
- PO Hosein has been a member of service for four years and has been a subject in four other CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 29, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (Board Review 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Tomiche Martinez</u>	<u>Inv. Tomiche Martinez</u>	<u>03/04/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>03/06/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date